

# Exhibit 61



# PATENT NON-INFRINGEMENT OPINION

To           Jiangsu Carya Smart Home Hardware Co. Ltd

FROM       JZMC Patent and Trademark Law Office

DATE       July 21, 2025

RE          *Patent Non-Infringement Opinion for US Patent 8,398,168*

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The undersigned has been retained by Jiangsu Carya Smart Home Hardware Co. Ltd. (the “Client”) to conduct a Patent Non-infringement Opinion (“PNO”) concerning US Patent 8,398,168 (“’168 Patent”). Copies of the ’168 Patent is attached as an Exhibit B herewith. The undersigned hereby provides the following Opinion.

## **Scope of the Patent Non-infringement Opinion.**

A. The PNO is based on a review of the following:

- (a) Prosecution history of the ’168 Patent.
- (b) Client’s product in disputes, including Linkage Mechanism -Model 7115 (“Product”), the information of which is attached as an Exhibit A herewith.

B. Determining patent infringement is a two-step process that requires:

- (a) Construing the claims of the ’168 Patent.
- (b) Determining whether the Product contains each limitation of the properly construed claims, either literally or under the doctrine of equivalents.  
(*Freedman Seating Co. v. Am. Seating Co.*, 420 F.3d 1350, 1356-57 (Fed. Cir. 2005).)

## **1. Executive Summary**

After conducting a careful analysis, as set forth in more detail below, a properly-informed court or jury should find that the manufacture, use, sale, offer for sale, or importation of the Product have a high probability of **NOT infringing**, either literally or under the doctrine of equivalents, any claims of the ’168 Patent.



## 2. Claims of the '168 Patent.

- A. The '168 Patent is issued on March 19, 2013 from US Application.12/870,498 filed August 27, 2010, which claims priority to a provisional application 61/295,555 filed on January 15, 2010. Therefore, the earliest priority date of the '168 Patent is January 15, 2010.
- B. The '168 Patent has 19 claims generally directed to a linkage mechanism and a seating unit with the linkage mechanism. The independent claims 1, 15, and 19 are set out below:
1. A seating unit having a chassis, a seat, a backrest, and at least one foot-support ottoman, the seating unit being adapted to move between a closed, an extended and a reclined position, the seating unit comprising:
- a pair of glide brackets in substantially parallel-spaced relation, wherein the glide brackets are mounted to the chassis and are vertically raised above an underlying surface by a plurality of supports;
  - a pair of seat-mounting plates in substantially parallel-spaced relation, wherein the seat-mounting plates translatably carry the seat over the glide brackets; and
  - a pair of the generally mirror-image linkage mechanisms each moveably interconnecting each of the glide brackets to a respective seat-mounting plate, wherein each of the linkage mechanisms comprise:
    - (a) a footrest assembly that extends and retracts the at least one foot-support ottoman, wherein the footrest assembly includes a front ottoman link that is rotatably coupled to a forward portion of one of the seat-mounting plates; and
    - (b) a seat-adjustment assembly that reclines and inclines the backrest; and
  - a front motor tube that spans and couples to the pair of linkage mechanisms, wherein the front motor tube having a pair of ends, wherein one of the ends of the front motor tube is fixedly coupled to the front ottoman link;
  - a linear actuator that provides **automated adjustment of the seating unit** between a closed position, an extended position, and a reclined position, wherein the linear actuator is pivotably coupled to the front motor tube,
    - wherein the linear-actuator adjustment is sequenced into a first phase and a second phase that are mutually exclusive in stroke,
    - wherein the first phase moves the footrest assembly between the closed position and the extended position upon the linear actuator exerting lateral thrust onto the front motor tube that, in turn, invokes movement of the front ottoman link,
    - wherein the movement of the first ottoman link controls adjustment of the footrest assembly between the closed position and the extended position, and
    - wherein the second phase moves the seat-adjustment assembly between the extended position and the reclined position.



15. A pair of the generally mirror-image linkage mechanisms adapted to move a seating unit between a closed, an extended, and a reclined position, the seating unit having a chassis, a seat that is translatable with respect to the chassis, and a backrest that is angularly adjustable with respect to the seat, each of the linkage mechanisms comprising:

- a sequence link having a guide slot, wherein the guide slot represents a aperture formed within the sequence link, and wherein the guide slot includes a first region and a second region; and

- a sequence element that, at least partially, extends into the guide slot, wherein

- the sequence element resides within the second region when the seating unit is adjusted to the reclined position, and

- when the seating unit is adjusted to the reclined position, **the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the closed position,**

- wherein

- the sequence element resides within the first region when the seating unit is adjusted to the extended position, and

- when the seating unit is adjusted to the extended position, the interaction of the sequence element and the sequence link allows adjustment of the seating unit to either the reclined position or to the closed position, and

- wherein

- the sequence element resides within the second region when the seating unit is adjusted to the closed position, and

- when the seating unit is adjusted to the closed position, **the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the reclined position.**

19. A seating unit, comprising:

- a pair of glide brackets in substantially parallel-spaced relation, wherein the glide brackets are rigidly supported above an underlying surface;

- a pair of seat-mounting plates in substantially parallel-spaced relation, wherein each of the seat-mounting plates is disposed in an inclined orientation in relation to each of the glide brackets, respectively;

- a pair of generally mirror-image linkage mechanisms each moveably interconnecting each of the seat-mounting plates to a respective glide bracket, and adapted to move the seating unit between a closed position, an extended position, and a reclined position, wherein each of the linkage mechanisms comprise:

- (a) a back-mounting link rotatably coupled to a respective seat-mounting plate and configured to support a backrest of the seating unit;

- (b) a sequence link rotatably coupled to the back-mounting link, wherein the sequence link includes a guide slot;

of the sequence link,

wherein the rear pivot link is rotatably coupled to **the sequence element**,

wherein the sequence element extends into the guide slot, and

wherein **interaction between the sequence element and the sequence link resists**

**direct adjustment** between the closed position and the reclined position;

(d) a motor bellcrank having a mid portion located between a first end and a second end,

wherein an activator bar is rotatably coupled to the first end of the motor bellcrank; and

(e) a front lift link having a front end and a back end,

wherein the back end of the front lift link is pivotably coupled to the back-mounting link,

and

wherein the mid portion of the motor bellcrank is rotatably coupled to a section between the front end and the back end of the front lift link; and

a linear actuator, coupled to the activator bar, that is sequenced into a mutually exclusive first phase and second phase,

wherein the first phase moves the linkage mechanisms between the closed position and the extended position, and

wherein the second phase moves the linkage mechanisms between the extended position and the reclined position.

*[Emphasis Added]*

### **3. Claim Construction.**

This Opinion focuses on the '168 Patent's independent claims 1, 15, and 19 because, if the independent claims are not literally infringed, the dependent claims are also not infringed (*Monsanto Co. v. Syngenta Seeds, Inc.*, 503 F.3d 1352, 1359 (Fed. Cir. 2007)).

Claim terms are generally given their ordinary and customary meaning to a person of ordinary skill in the art at the time of the invention, which is generally the patent application's effective filing date (*Skinmedica, Inc. v. Histogen, Inc.*, 727 F.3d 1187, 1195 (Fed. Cir. 2013); *Phillips v. AWH Corp.*, 415 F.3d 1303, 1312-13 (Fed. Cir. 2005)).

The following were considered in determining the proper claim construction:

- (a) The claim terms in the context of:
  - i. the claim itself; and
  - ii. the entire '168 Patent, including its specification.
- (b) The prosecution history, including the cited prior art.
- (c) Extrinsic evidence, copies of which are attached as an Exhibit herewith.

The independent claims 1, 15 and 19 of the '168 Patent recite, in part, the following terms, which should be construed in accordance with the specification of the '168 Patent, as set out below:

|                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|---------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Claim 1 element                 | automated adjustment of the seating unit                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| ordinary and customary meaning  | Certain adjustment of the seating unit is performed by an automatic machine or computer without needing human control                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| Specification description       | <ol style="list-style-type: none"> <li>1. "...an occupant of the glider recliner may invoke <b>an adjustment</b> from the reclined position to the extended position...the occupant may invoke <b>an actuation</b> at a hand-operated controller that sends <b>a control signal</b> with instructions to the linear actuator..." Col 10, lines 42-49.</li> <li>2. "Upon receiving the control signal from the hand-operated controller... the linear actuator carries out a stroke in the second phase..." Col 10, lines 58-61.</li> <li>3. "...the automated force of the motor mechanism 320 on the front motor rube 310 in the first phase of the linear-actuator stroke rotates the front ottoman line 110 about the pivot 115..." Col 12, lines 12-15.</li> </ol> |
| Analysis                        | <p>The specification clearly discloses that an occupant may invoke the adjustment of the recliner by "an actuation at a hand-operated controller", which sends "a control signal" to the linear actuator. Afterward, the linear actuator may carry out "a stroke" with automated force of the motor mechanism, without requiring further actuation of the hand-operated controller by the occupant.</p>                                                                                                                                                                                                                                                                                                                                                                |
| Claim interpretation Conclusion | The occupant only needs to invoke a singular actuation of the hand-operated controller to instruct the seating unit to adjust from one to another one of the three positions (closed, extended, and reclined), and the linear actuator will perform the automated adjustment of the recliner among the three positions without further occupant's intervention.                                                                                                                                                                                                                                                                                                                                                                                                        |

|                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|--------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Claims 15 & 19 element         | <ul style="list-style-type: none"> <li>• when the seating unit is adjusted to the reclined position, the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the closed position,</li> <li>• when the seating unit is adjusted to the closed position, the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the reclined position.</li> </ul> |
| ordinary and customary meaning | <ul style="list-style-type: none"> <li>• "Resisting adjustment" means preventing or withstanding the adjustment.</li> <li>• "Resisting adjustment of the seating unit" indicates that there are some resisting forces that prevented the seating unit from being adjusted.</li> </ul>                                                                                                                                                            |



|                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|---------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                           | <ul style="list-style-type: none"><li>• “Interaction between the sequence element and the sequence link” means there are physical forces applied between the sequence element and the sequence link, and such physical forces prevent the seating unit from being adjusted.</li><li>• The above claim language also indicates that the seating unit would have been adjusted to [a closed position or a reclined position] except for the interaction between the sequence element and the sequence link.</li></ul>                                                                                                                                                                                                                                                    |
| Specification description | <ol style="list-style-type: none"><li>1. “...if the sequence element 526 resides within the second region 556 (when the glider recliner is adjusted to the reclined position), the interaction of the sequence element 526 and the sequence link 550 resists adjustment of the glider recliner directly from the reclined position to the closed position...” Col 11, lines 19-24.</li><li>2. “...upon adjusting the glider recliner to the closed position, the sequence element 526 resides within the second region 556 (see FIG. 9) and the interaction of the sequence element 526 and the sequence link 550 resists adjustment of the glider recliner directly from the closed position to the reclined position...” Col 11, line 65 – Col 12, line 3.</li></ol> |

#### Analysis

The specification discloses that when the recliner is adjusted to the reclined position, the interaction of the sequence element 526 and the sequence link 550 resists adjustment of the glider recliner directly from the reclined position to the closed position.

In a reclined position, the seating unit 10 has its backrest 25 reclined and its foot-support ottoman 45 extended forward. In an extended position, the seating unit 10 has its backrest upright and its foot-support ottoman 45 extended forward. And in a closed position, the seating unit 10 has its backrest 25 upright and its foot-support ottoman 45 positioned below the seat.

Therefore, the difference between the extended position and the closed position is that in extended position, the foot-support ottoman 45 extended forward, and in closed position, the foot-support ottoman 45 is not extended and retracted.

Therefore, it can be inferred that the interaction of the sequence element 526 and the sequence link 550 resists adjustment of the foot-support ottoman 45 when the glider recliner is being adjusted from the reclined

|                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                    | <p>position to the extended position.</p> <p>Likewise, it can be inferred that the interaction of the sequence element 526 and the sequence link 550 resists adjustment of the backrest 25 when the glider recliner is being adjusted from the closed position to the extended position.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| Claim interpretation<br>Conclusion | <p>This claim limitation should be construed to mean:</p> <ol style="list-style-type: none"> <li>1. the forces through interaction of the sequence element 526 and the sequence link 550 prevent the backrest from being reclined when the seating unit is being adjusted from the closed position to the extended position., or prevent the foot-support ottoman from being retracted when the seating unit is being adjusted from the reclined position to the extended position, and</li> <li>2. Without the forces through interaction of the sequence element 526 and the sequence link 550, the backrest would have been reclined when the seating unit is being adjusted from the closed position to the extended position., or the foot-support ottoman would have been retracted when the seating unit is being adjusted from the reclined position to the extended position.</li> </ol> |

|                                    |                                                                                                                                                                        |
|------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Claims 19 element                  | wherein the rear pivot link is rotatably coupled to <b>the sequence element</b>                                                                                        |
| Claim Construction                 | The claim element “the sequence element” has no antecedent basis.                                                                                                      |
| Claim interpretation<br>Conclusion | All claim elements should have proper antecedent basis. In claim 19, the term “the sequence element” has no antecedent basis, and should be deemed <b>indefinite</b> . |

#### 4. Non-Infringement Analysis.

Direct infringement occurs where an entity, without the patentee's permission, does any of the following:

- (a) Makes, uses, sells, or offers to sell the patented invention in the US.
- (b) Imports the patented invention into the US.  
(35 U.S.C. § 271(a).)



[REDACTED]

Infringement exists only if the Product includes every claim limitation, either literally or under the doctrine of equivalents (*V-Formation, Inc. v. Benetton Grp. SpA*, 401 F.3d 1307, 1312-13 (Fed. Cir. 2005); *Warner-Jenkinson Co. Inc. v. Hilton Davis Chem. Co.*, 520 U.S. 17, 40 (1997)).

## 5. No Literal Infringement.

As set forth in more detail below, the manufacture, use, offer for sale, sale, or importation into the US of the Product **would NOT literally infringe** any element of the independent claims 1, 4, and 8 of the '168 Patent, at least for the following reasons:

### A. The Product does not infringe independent claim 1 of the '168 Patent.

As shown in the claim chant below, independent claim 1 of the '168 Patent recites a linear actuator that provides “**automated adjustment of the seating unit.**”

In comparison, the Product does not have a linear actuator that provides “**automated adjustment of the seating unit**”, as recited in the independent claim 1 of the '168 Patent.

| No. | Claim 1 Element                                                                 | Different?                                                                                 | Analysis                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|-----|---------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1   | a linear actuator that provides <b>automated adjustment of the seating unit</b> | Yes.<br><br>The Product <b>cannot</b> provide an automated adjustment of the seating unit. | The Product contains a hand-controller with buttons to control the adjustments of the seating positions. A user needs to continuously press on one button of the hand-controller in order to control a linear motor to supply power to the Product’s adjustment mechanism. If the user stops pressing on the button, the Product’s adjustment mechanism stops, regardless of whether the Product reaches a specific seating position.<br><br>Therefore, the Product requires continuous user inputs to perform its powered adjustment. The Product cannot perform an automated adjustment from one position to another position by a singular pressing of the button. |
| 2   | <i>[Rest of the Claim 1 elements are omitted]</i>                               |                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

B. The Product does not infringe independent claim 15 of the '168 Patent.

As shown in the claim chant below, independent claim 15 of the '168 Patent recites that “when the seating unit is adjusted to the reclined position, the **interaction** of the sequence element and the sequence link **resists adjustment of the seating unit** to the closed position” and “when the seating unit is adjusted to the closed position, the **interaction** of the sequence element and the sequence link **resists adjustment of the seating unit** to the reclined position.”

In comparison, even assume arguendo, the Product includes corresponding sequence element and sequence link, the corresponding sequence element and the sequence link has not affect during position adjustments.

| No. | Claim 15 Element                                                                                                                                                                               | Different?                                                                                                                                                         | Analysis                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|-----|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1   | when the seating unit is adjusted to the reclined position, <b>the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the closed position</b> | Yes<br><br>The Product’s corresponding sequence element and sequence link do not have interaction that can resist adjustment of the Product to the closed position | The Product utilizes a spring-like mechanism and multiple stops to control the seatback and foot-support ottoman from being moved during certain position adjustments.<br><br>In an experiment, the Product’s corresponding sequence element and sequence link are disengaged to make sure there is <b>no interaction</b> between the corresponding sequence element and sequence link during operation, and the Product was able to perform position adjustments as usual. Specifically, when the Product is adjusted from reclined position to extended position, the foot-support ottoman is not retracted and the Product is not adjusted to the closed position.<br><br>Therefore, this experiment proves that the interaction between Product’s corresponding sequence element and sequence link, if any, is not a factor in resisting adjustment from the reclined position to the closed position. |
| 2   | when the seating unit is adjusted to the closed position, <b>the interaction of the sequence element and the sequence</b>                                                                      | Yes<br><br>The Product’s corresponding sequence                                                                                                                    | The Product utilizes a spring-like mechanism and multiple stops to control the seatback and foot-support ottoman from being moved during certain position adjustments.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

|   |                                                                             |                                                                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|---|-----------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|   | <b>link resists adjustment of the seating unit to the reclined position</b> | element and sequence link do not have interaction that can resist adjustment of the Product to the reclined position | <p>In an experiment, the Product's corresponding sequence element and sequence link are disengaged to make sure there is <b>no interaction</b> between the corresponding sequence element and sequence link during operation, and the Product was able to perform position adjustments as usual. Specifically, when the Product is adjusted from closed position to extended position, the backrest is not reclined and the Product is not adjusted to the reclined position.</p> <p>Therefore, this experiment proves that the interaction between Product's corresponding sequence element and sequence link, if any, is not a factor in resisting adjustment from the closed position to the reclined position.</p> |
| 3 | <i>[Rest of the Claim 15 elements are omitted]</i>                          |                                                                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

C. The Product does not infringe independent claim 19 of the '168 Patent.

As shown in the claim chant below, independent claim 19 of the '168 Patent recites “a second curtain lamp electrically connected to the alternating current voltage transferring to direct current voltage circuit.”

In comparison, the Product does not have an alternating current voltage transferring to direct current voltage circuit” that is electrically connected to a second lamp, as substantially recited in the independent claim 4 of the '168 Patent.

| No. | Claim 19 Element                                                                | Different?            | Analysis                                                                                                                                                                                                   |
|-----|---------------------------------------------------------------------------------|-----------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1   | wherein the rear pivot link is rotatably coupled to <b>the sequence element</b> | Yes<br><br>Indefinite | <p>The claim term “the sequence element” lacks proper antecedent basis, and should be deemed indefinite.</p> <p>The Product does not contain any element that can be equivalent to an indefinite term.</p> |

|   |                                                                                                                                                               |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|---|---------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 2 | wherein interaction between the sequence element and the sequence link <b>resists direct adjustment between the closed position and the reclined position</b> | Yes<br><br>The Product's corresponding sequence element and sequence link do not have interaction that can resist adjustment of the Product between the closed position and the reclined position | <p>The Product utilizes a spring-like mechanism and multiple stops to control the seatback and foot-support ottoman from being moved during certain position adjustments.</p> <p>In an experiment, the Product's corresponding sequence element and sequence link are disengaged to make sure there is <b>no interaction</b> between the corresponding sequence element and sequence link during operation, and the Product was able to perform position adjustments as usual. Specifically, the Product is able to be adjusted from the closed position to the extended position and then to the reclined position, or be adjusted from the reclined position to the extended position and then to the closed position.</p> <p>Therefore, this experiment proves that the interaction between Product's corresponding sequence element and sequence link, if any, is not a factor in resisting adjustment between the closed position and the reclined position.</p> |
| 3 | <i>[Rest of the Claim 19 elements are omitted]</i>                                                                                                            |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

Based on the claim interpretation illustrated above and the Product as illustrated, the Product does **NOT** operate as claimed by the independent claims 1, 15, and 19 of the '168 Patent. In conclusion, the Product **would NOT literally infringe** the independent claims 1, 15, and 19 of the '168 Patent.

#### 6. **No Infringement under the Doctrine of Equivalents.**

Equivalence is evaluated on a limitation-by-limitation basis, rather than from the perspective of the invention as a whole (Warner-Jenkinson Co., 520 U.S. at 40 and E-Pass Techs., Inc. v. 3Com Corp., 473 F.3d 1213, 1221 (Fed. Cir. 2007)). This means that there can be no finding of infringement under the doctrine of equivalents if the purported equivalent element would entirely vitiate a claim limitation (Freedman Seating Co., 420 F.3d at 1358-59).



In addition, an accused product's element or feature is NOT equivalent to a claim limitation when:

- (a) The accused product's feature is substantially different from the claim limitation.
- (b) The claim element and accused product do not:
  - i. perform substantially the same function;
  - ii. perform in substantially the same way; and
  - iii. achieve substantially the same result.(*Warner-Jenkinson Co.*, 520 U.S. at 39-40.)

The manufacture, use, offer for sale, sale, or importation into the US of the Product would NOT infringe any element of the independent claims 1, 15 and 19 under the doctrine of equivalents, because the Product does not include features that is equivalent to the elements recited in these independent claims.

- A. The Product does not infringe independent claim 1 of the '168 Patent under the doctrine of equivalents.

The Product's linear actuator, if any, performs its functions in a substantially different way and achieves a substantially different result in comparison to the "linear actuator that provides automated adjustment of the seating unit" as recited in the independent claim 1. Therefore, the Product CANNOT be equivalent to having "automated adjustment" as recited in the independent claim 1 under the Function/Way/Result test.

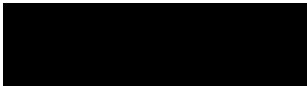
- B. The Product does not infringe independent claim 15 of the '168 Patent under the doctrine of equivalents.

The Product's sequence element and sequence link, if any, perform its functions in a substantially different way and achieves a substantially different result in comparison to the "interaction between the sequence element and the sequence link resists adjustment" as recited in the independent claim 15. Therefore, the Product CANNOT be equivalent to having a "resisting adjustment" function as recited in the independent claim 15 under the Function/Way/Result test.

- C. The Product does not infringe independent claim 19 of the '168 Patent under the doctrine of equivalents.

The Product does not have any parts which CAN be equivalent to an indefinite "sequence element", as recited in the independent claim 19 under the Function/Way/Result test.

As a result, the Product **would NOT infringe under the Doctrine of Equivalents** the



## **Summary of the Patent Non-infringement Opinion**

It is the opinion of the undersigned, which is provided in good faith and after due consideration of the relevant law and evidence, that a properly informed court or jury should determine that the alleged Product **would NOT infringe** any claim, either literally or under the doctrine of equivalents, of the '168 Patent.

### **Disclaimer**

- (a) The undersigned is with reasonable certainty that the Analysis performed is accurate and objective. However, please note that patent infringement determinations, especially in litigation, are uncertain and may depend on multiple factors, including the aggressiveness of the owners of the '168 Patent, additional facts that may be uncovered during discovery, and the uncertainties as to the trial counsels, judge, jury, and/or witnesses.
- (b) It is understood by “with a reasonable certainty” that this Analysis can never be determined with absolute certainty due to inherent features of the patent system. There is no guarantee that the same conclusions can be reached in litigation. Due to the adversarial nature of patent litigation, the outcome of such proceedings is inherently unpredictable.
- (c) The undersigned is well aware that the results of our Analysis could have great importance for the Client’s further decision-making, and the undersigned made every effort to conduct its analysis with the greatest care and professionalism possible.
- (d) This Analysis contains solely the subjective opinion of the undersigned. No language in this Analysis may be used to reflect or infer the Client’s acknowledgement or opinion regarding to the '168 Patent and its validity. The Client is entitled to make its own determination or rely on a separate opinion from another counsel.

### **Disclosure Strictly Prohibited.**

The present Patent Non-infringement Opinion is subject to the attorney-client privilege and contains confidentiality restriction between the Firm and the Client. Neither this Opinion, nor any contents therein, may be disclosed to any third party without express prior approval, unless required by law or court order.



Regards,

/Xiaofei Xue/

Xiaofei XUE

US Patent Attorney  
CA Bar# 255,287  
USPTO Reg# 65,470



**Exhibit A**

Product Name: Linkage Mechanism -Model 7115





**Exhibit B**

**US 8,398,168 Patent**